



Digital Duty of Care Exposure Draft Bill 2026

“Build Your Own Submission” resource

**CONSULTATION CLOSES 22 SEPTEMBER
2026 at 12pm**



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**WOTTON
KEARNEY**

Build Your Own Submission

Online Safety Amendment (Digital Duty of Care) Bill 2026

This resource contains:

- Information about the Digital Duty of Care Bill and tips to support you with your submission
- Template submission designed for Community Legal Centres, Civil Society and Not-for-Profit Organisations

CONSULTATION CLOSES: 22 SEPTEMBER 2026 at 12pm

This document contains general information available at the time of publication. It does not constitute legal advice.

ABOUT THIS RESOURCE

This resource was prepared by Wotton Kearney in partnership with Digital Rights Watch as a practical tool for community legal centres, civil society and not-for-profit organisations to engage with the Australian Government's consultation on the *Online Safety Amendment (Digital Duty of Care) Bill 2026* exposure draft (**the Bill**) which is available [here](#).

The consultation on the Bill closes at 12pm on 22 September 2026.

Submissions should be sent to the Department of Infrastructure, Transport, Regional Development, Communications, Sport and the Arts at digitaldutyofcare@communications.gov.au. See Part 4 of this resource for a template submission.

We have done our best in the short timeframe since the release of the exposure draft to provide enough background information, context and analysis for your organisation to form its own positions, picking the key issues that are most relevant to your work. Our aim is to support you to write a submission in your organisation's voice, drawing on your expertise and clients' lived experience.

TIP Don't let the perfect be the enemy of the good. Say what you support, not just what you'd change. There is currently a lot of confusion about what the Bill means and what impact it will have. Your organisation's real life case studies will be important for progressing informed public consideration of the Duty.

Consider framing your submission around three elements: (1) what you support and want preserved, (2) what you support but want strengthened, and (3) your concerns and what you'd recommend instead.

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PART 1: OVERVIEW OF THE BILL

This Part provides a summary of the Bill. It is designed to give your organisation an understanding of the Bill, and to help you engage with the detailed issue analysis in Part 3 of this resource.

What the Bill Does

The Bill (available [here](#)) amends the *Online Safety Act 2021* (Cth) (**OSA**) (and keeps most of the existing OSA).

It does three main things:

1. **Introduces a Digital Duty of Care** (Schedule 2 of the Bill)
2. **Gives the eSafety Commissioner additional powers** to remove certain content, links and apps (Schedule 1 of the Bill)
3. **Repeals industry codes and industry standards** which currently form part of the OSA (Schedule 3 of the Bill)

A **glossary** of key terms used in the Bill is below at **Part 2.5**.

PART 1.1 The Digital Duty of Care

Overview

The **digital duty of care** requires a **person responsible for an online service** to:

1. Ensure a **safe online environment** so as far as is reasonably practicable
2. **Manage design features** of online services (such as algorithms, endless feeds etc)
3. Conduct regular **risk assessments** and take effective measures to address risks.

Who owes the duty of care?

The duty of care is owed by ‘a **person responsible for an online service**’.

Online services (section 25A) are defined broadly. The definition is intended to be technology-neutral and have the ability to cover emerging services that don’t yet exist. It includes:

- social media services
- search engines
- app stores (including distribution services)
- hosting services
- devices and equipment, and
- services that can generate AI material and share it on another online service.

‘Lawful communications in private between consenting adults’ (s 26(7)) are not captured, although it’s not clear how this would be assessed.

‘A person responsible’ (s 25A(2)) includes a person who provides the service and a person in day-to-day control of it. It seems this is intended to capture both the corporate entity and senior staff with operational responsibility.

What does the duty require? ‘a safe online environment’

The duty requires online services to ensure ‘a safe online environment’ (section 25B) so far as is reasonably practicable.

A ‘safe online environment’ is different for adults and for kids. That is, the Bill requires online services to do more to protect kids, and less to protect adults.

For definitions of terms used in this table, see glossary (part 1.5 below), the appendix to this document, and the Bill itself.

Adults	Children
HARMFUL MATERIAL AND CONDUCT Protected from <u>seriously</u> harmful material and conduct (s 25C) : • Child sexual exploitation/abuse • grooming a child • sexual violence • extreme violence or cruelty • threats of violence including rape • menacing or harassing • self harm/suicide material • terrorism • criminal offence • drug use • abhorrent violent conduct • Other material / conduct decided by the Minister	HARMFUL MATERIAL AND CONDUCT Protected from material and conduct that is harmful to children (s 25D) : • Anything that could inflict serious harm to a child (this is a ‘catch-all’) • porn • eating disorders • hostile attitudes towards women or gender equality • crime • abuse or bullying • Anything else determined by Minister (section 25D(2)).
HARMFUL FEATURES Those subject to the duty must: • ‘Manage design features appropriately’ (<i>meaning unclear</i>) and • Provide ‘user empowerment tools’ (as required by the Minister under a legislative instrument s 26(4).) ◦ (this is relevant to the algorithm opt in/opt out)	HARMFUL FEATURES Children must be protected from: • harms associated with certain design features • (<i>only for children under 16 on social media</i>) design features that have ‘negative behavioural impact’ (s 25G) being: ◦ a recommender feature (ie algorithm) ◦ a logged-in feature;

we've been hearing about in the media, which doesn't currently exist under the Bill)

- an endless-feed feature;
- a feedback feed feature;
- a time limited feature;
- a design feature determined by the Minister.

PART 1.2 Risk assessments

Online services are required under the Bill to do risk assessments.

A risk assessment is a written assessment of the risk of harm posed by material or conduct done at least annually (section 26B) It must:

- **Identify:**
 - all reasonably foreseeable risks (not just those relevant to the Digital Duty of Care),
 - things that give rise to the risk (Content, features, other systems and processes)
 - people who may be affected by the risk
- **Assess** likelihood and severity of risks
- **Document** risk minimisation measures (implemented and planned)
- **Be provided** to the eSafety Commissioner for regular review and assessment

Risk assessments are to be done at least annually.

Failure to comply with the risk assessment requirements - 60,000 penalty units (s 26B) – up to \$109 million for corporations.

PART 1.3 More powers for eSafety Commissioner

The eSafety Commissioner is given new powers relating to the removal of certain harmful material or places that material is located online under Schedule 1 of the Bill.

Fake nude apps and websites removal (Part 6A, s 86B)

When it comes to apps or websites that are designed or used predominantly to generate fake nude material, the eSafety Commissioner has new powers to issue notices to (section 86B):

- Remove the app
- Remove links to the app or website
- Remove advertising or information about the app/website

Compliance is required within 24 hours or as otherwise agreed with the Commissioner (s 86C).

Non-compliance attracts penalties of 6,000 penalty units or up to \$109 million for corporations.

Online services can seek a review of a notice in the Administrative Reviews Tribunal (s 220(10B)).

Link deletion notices (Division 3 of the Bill)

The Commissioner can issue link deletion notices to search engines requiring them to cease providing links to certain types of material, specifically:

- cyber-bullying material targeting Australian children or adults (see ss 72A and 92A)
- Intimate images (s 82)

A prerequisite is that a removal notice has already been issued to the hosting service.

Compliance is required within 24 hours or as otherwise agreed with the Commissioner, with penalties of 6,000 penalty units for non-compliance.

Complaint waiver and reposting

The Bill gives the Commissioner two important procedural flexibilities:

Complaint waiver: the Commissioner can waive the usual requirement for a complaint to the service provider where there is no functional complaints mechanism or where making a complaint would risk further harm to the affected person.

Reposting: the Commissioner can act on reposted material (even if altered) without requiring a fresh complaint. This addresses the common problem of harmful material being taken down and then re-uploaded in a slightly modified form.

PART 1.4 Enforcement

The Bill gives the eSafety Commissioner a graduated suite of enforcement tools:

- **Formal warnings (s 26C):** the Commissioner may issue formal warnings where there has been a contravention of the duty.
- **Remedial directions (s 26D):** the Commissioner may direct a person to take specified action to remedy a contravention. Non-compliance attracts penalties of up to 60,000 penalty units (up to \$109 million for corporations).
- **Infringement notices:** for less serious breaches, the Commissioner may issue infringement notices as an alternative to civil penalty proceedings.
- **Civil penalties (s 26B):** breach of the duty itself attracts civil penalties of up to 60,000 penalty units (up to \$109 million for corporations).

The Bill also introduces several transparency and accountability mechanisms:

- **Transparency reports (Part 12A, s 192C):** services will be required to publish regular transparency reports.
- **Compelled publication of safety information (s 192M):** the Commissioner may require services to publish specific safety information.
- **Data access for researchers (Part 14, s 205B):** the Bill establishes a framework for independent researchers to access data held by online services.
- **Sock puppet identity protections (ss 205G–205L):** protections for researchers and the Commissioner to create accounts for investigative purposes without revealing their identity.
- **Annual statement of monitoring and enforcement priorities (s 166C):** the Commissioner must publish an annual statement setting out regulatory priorities.

PART 1.5 Glossary

“Design features” (s 25F)

The Bill defines “design features” to include:

- Recommender systems and algorithmic content curation
- Endless-feed or infinite-scroll mechanisms
- Feedback mechanisms (such as likes, reactions and follower counts)
- Features that require or encourage users to be logged in
- Time-limited features (such as disappearing content)

Note that only children are protected from harms caused by design features of online services.

“Negative behavioural impacts” (s 25G)

This concept applies specifically to children under 16 on social media. Where design features negatively affect children’s behaviour — for example, by encouraging compulsive use or amplifying harmful content — those features must not operate in respect of those children.

“Seriously harmful material and conduct” (s 25C)

This term covers defined categories of the most severe online harms, including illegal content, content promoting violence, exploitation material, and other content that poses a serious risk of harm.

Both children and adults are protected from seriously harmful material and conduct.

“Harmful to children” (s 25D)

This is a broader category than “seriously harmful” material. It includes content involving bullying, self-harm promotion, age-inappropriate material, and other

material that may harm children even if it does not meet the higher threshold of “seriously harmful.”

“Reasonably practicable” (s 25H)

The duty is not absolute. Section 25H sets out the factors for determining what is “reasonably practicable,” balancing:

- The likelihood and degree of harm
- The knowledge (actual or constructive) of the person responsible
- The availability and suitability of ways to mitigate the harm
- The cost of mitigation, including whether the cost would be grossly disproportionate to the risk
- The impact on user privacy

“User empowerment tool” (s 26(6))

A user empowerment tool lets a user of an online service manage the way design features of the service operate for the user (for example, whether or not they want to have an algorithm determining what content they see).

There is currently no requirement for online service providers to provide user empowerment tools. The Minister has the power to make online service providers provide ‘user empowerment tools’ via a legislative instrument (s 26(4)).

“Legislative instrument”

The Minister is given a range of powers under the Bill to do things ‘by legislative instrument’. This means that the Minister could make changes to the Bill by tabling a legislative instrument in Parliament. A legislative instrument can be disallowed, or overruled, by Parliament (unless exempted from that, but no exemptions apply under the Bill). For this reason, legislative instruments under this Bill may also be referred to as ‘**disallowable instruments**’. For more information about legislative instruments, see [here](#).

PART 2: DIGITAL DUTY OF CARE – PROS, CONS & AMBIGUITY (ISSUES FOR YOUR SUBMISSION)

This part covers the key issues in the Bill 2026. For each issue, we provide:

- 1. an explanation of what the Bill does**
- 2. pros and cons of the approach**
- 3. areas of ambiguity and vagueness in the Bill.**

2.1 Single overarching duty – better than multiple duties?

The Bill imposes a single overarching duty: persons responsible for online services must ensure, so far as is reasonably practicable, a safe online environment (s 26(1)).

This is unlike the United Kingdom's Online Safety Act, which imposes multiple specific duties for specific types of harm.

The Australian approach draws on the model used in workplace health and safety law — a broad, principles-based obligation rather than a prescriptive checklist.

Pros	Cons
Future-proofs the law - captures new technologies and harms without needing legislative amendments each time a new risk emerges.	May lack specificity - platforms may struggle to understand what compliance looks like in practice without detailed guidance.
Simpler for platforms to understand - one overarching standard to meet, rather than navigating a complex web of specific duties.	Could be interpreted narrowly by platforms seeking to minimise their obligations, undermining the protective intent of the law.
Avoids gaps that can emerge when regulation relies on a closed list of specific duties that may not anticipate every scenario.	The "reasonably practicable" qualifier to the duty to create a safe online environment may dilute the duty in practice - platforms could argue that addressing certain harms is not reasonably practicable due to cost or technical difficulty.
Consistent with other Australian safety frameworks (e.g. workplace health and safety), giving regulators and courts a well-established body of interpretive principles to draw on.	Without specific duties it may be harder for the regulator to take enforcement action and demonstrate non-compliance.
	The UK experience suggests that specific duties for specific harms provide clear accountability and more predictable compliance expectations.

2.2 Protections for adults vs children – is a tiered approach the best approach?

The Bill creates a tiered protection structure with different levels of obligations depending on the age of the user:

- **Adults:** protected from "seriously harmful material and conduct" only (s 25C), with potential requirements for online services to provide adults with 'user empowerment tools' if required by the Minister (noting these requirements don't currently exist.)
- **Children:** Protected from material "harmful to children" (s 25D) and from harms arising from design features.
- **Under-16s on social media:** prohibits design features with "negative behavioural impacts".
- **Private communications exception:** the duty 'does not require any action to be taken in relation to lawful communication occurring in private solely between consenting adults' (the private communications exception) (s 26(7)).

Pros	Cons
Children have distinct vulnerabilities and the well-established "best interests of the child" principle justifies heightened protections.	Creates an "age cliff" at 18 - a 17-year-old receives full protection, while an 18-year-old loses much of it overnight.
Reflects the greater capacity of adults to manage online risks and make informed choices about their online activity.	Many serious harms disproportionately affect adults: technology-facilitated gender-based violence, addiction targeting, elder abuse, and exploitation of people with disabilities.
The under-16 social media design feature prohibition responds to growing evidence of harm to young people from addictive design patterns.	The "seriously harmful", which requires material or conduct to be seriously harmful rather than just harmful, may be too high for many adults.
Consistent with international trends prioritising child safety, including the UK Online Safety Act.	Adults who are vulnerable to harms online (due to disability, age, addiction, or mental health conditions) may not be sufficiently protected by the digital duty of care.
The private communications exception seems to intend to protect adults from lawful and consensual conversation, implicitly recognising the rights to freedom of speech, expression, and privacy.	The private communications exception could have unintended consequences due to its wording (see below). It may also shield platforms from accountability for harms occurring in messaging services (e.g. coercive control, image-based abuse, sextortion).
	The UK removed its "lawful but harmful to adults" duty under political pressure, but many stakeholders including civil society

	organisations believe it should have been retained.
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2.3 Design features – does the Bill go far enough?

The Bill addresses the role of platform design in causing or contributing to online harms:

- **Design features** are defined in s 25F and include: recommender systems (algorithmic recommendations), endless-feed (infinite scrolling), feedback mechanisms (likes, reactions), logged-in features (features requiring a login), and time-limited features (disappearing content). **Note:** Children are expressly protected from harms associated with design features (s 25B(1)(b)(ii)), whereas for adults there are fewer protections.
- **Under-16s on social media:** design features with "negative behavioural impacts" (s 25G) must not operate at all, noting this only applies to social media.
- **User empowerment tools:** the Minister may require services to provide tools that allow users to control their experience (s 26(4)–(6)). This only applies where required by a Minister ie. through a legislative instrument.
- **Risk assessments:** must identify design features giving rise to foreseeable risks (s 26A).

Pros	Cons
Directly addresses addictive design and algorithmic amplification, especially for children. This goes beyond content-only regulation to tackle the structural drivers of harm.	User empowerment tools that may be required to be made available to adults (if the Minister passes a legislative instrument to this effect) place the burden on individual users rather than requiring platforms to adopt safe defaults - this is a "safety opt-in" rather than "safety by design" approach.
The under-16 prohibition is a strong response to mounting evidence of design-driven harm to children and adolescents.	There is no requirement for recommender algorithms to be opt-in by default - users must actively seek out alternatives to algorithmic curation.
Risk assessment requirements force platforms to proactively consider the impacts of their design choices before harm occurs.	Critical details about user empowerment tools are left to delegated legislative instruments that have not yet been drafted, making it difficult to assess whether protections will be adequate.
User empowerment tools, if they are required by the Minister in future by a legislative instrument, would give individuals some degree of control over their online experience.	Does not address advertising and targeting design features - how data is collected and used to target advertisements is not covered by the design feature provisions.

	The listed design features may not capture all features causing harm (e.g. autoplay, push notifications, social comparison metrics, gamification mechanics).
	The under-16 prohibition is limited to social media services - other types of services (e.g. gaming platforms, streaming services) also deploy harmful design features.

Areas of Vagueness Requiring Clarification

The design features provisions contain several significant ambiguities that organisations may wish to raise in submissions:

User empowerment tools and ambiguity around opt-in or opt-out

- Despite recent media coverage regarding opt-in or opt-out algorithms, the Digital Duty of Care doesn't require online services to provide this functionality to users.
- What it does require is that online services provide 'user empowerment tools' but only as required by the Minister (see s 26(3)(a) and (4)).
- 'User empowerment tools' allow users of online services to manage the way the design features of the service operate for them (for example, by providing control over an algorithm (s 26(6)).
- No 'user empowerment tools' are currently required to be provided under the Bill. What that means is, as the Bill stands, there would be no obligation for the service provider to give adults any control over the design features of online services, unless and until this was required by the Minister via a legislative instrument passed by Parliament.
- Organisations should consider whether online service providers should be required under the Bill to provide any 'user empowerment tools' and, if so, what tools (e.g opt-in or opt-out algorithms).

Should additional design features be deemed as having 'negative behavioural impacts'?

- Section 25F lists five categories of design features (recommender, endless-feed, feedback, logged-in, time-limited).
- The use of the word "includes" in s 25F(1) demonstrates the list is non-exhaustive, meaning the duty could apply to design features not specifically listed, such as autoplay, push notifications, gamification mechanics, or social comparison metrics.
- In addition, certain design features of online services are deemed as having 'negative behavioural impacts' (that is, recommender features, logged-in features, endless feeds, feedback feeds, time limited features and any other design features determined by the Minister (see s 25G).

- Organisations should consider whether there are other design features that should be deemed to have ‘negative behavioural impacts’ other than those listed in s 25G(1), for example, autoplay, push notifications, gamification mechanics, or social comparison metrics. Otherwise, it will be up to the Minister and Parliament to pass a legislative instrument in order to identify other design features that are deemed to have ‘negative behavioural impacts’ which might take time or never happen.

What constitutes “appropriate” management?

- The mandatory requirement to “manage design features of the service appropriately” (s 26(3)(a)) does not define what “appropriately” means. This leaves significant uncertainty for both services (who must comply) and the Commissioner (who must enforce).
- Organisations may wish to recommend that the explanatory memorandum provide guidance on what “appropriate” management looks like in practice, or that the Commissioner be expressly empowered to issue binding standards on this point.

TIP FOR YOUR SUBMISSION Where the Bill is vague, recommend that the Government clarify its intent either in the explanatory memorandum, through amendments to the Bill itself, or by requiring the Commissioner to issue binding guidance.

2.4 Scope of Harms — Are the Right Harms Covered?

The Bill defines two tiers of harm:

- **"Seriously harmful material and conduct" (s 25C)** categories include: material depicting serious violence, sexual exploitation, material promoting self-harm or suicide, material involving menacing, harassing or offensive conduct, material encouraging hostile attitudes towards women or gender equality, material promoting illicit drugs, and more. The Minister can add further categories by legislative instrument.
- **"Harmful to children" (s 25D)** categories include any material that could inflict serious harm to a child as well as certain categories of material and content harmful to children including: abuse, harassment or bullying, age-inappropriate content, content promoting eating disorders, and more, as well as any material determined by the Minister (via a legislative instrument).
- **Ministerial expansion power:** the Minister can expand both lists by disallowable legislative instrument, providing a mechanism for the framework to evolve as new harms emerge.

Pros	Cons
Covers the most serious online harms based on current evidence, focusing	Does not explicitly cover financial harms and scams (which are addressed under a separate regulatory framework), creating a

regulatory attention where it is most needed.	gap for vulnerable people targeted by scam content on in-scope platforms.
Ministerial powers to add categories of harm allows the framework to evolve as new harms emerge without requiring primary legislation.	Does not address cumulative harms: for example repeated exposure to harmful content (e.g. body-shaming, radicalisation pathways) that may not meet the "seriously harmful" threshold individually but causes significant harm over time.
The Minister can only add categories of harm via legislative instruments which provide parliamentary oversight. Either House of Parliament can disallow a new category of harm or other changes the Minister wishes to make.	Does not explicitly address systemic harms: misinformation, disinformation, threats to democratic integrity, and coordinated inauthentic behaviour are not listed as harm categories.
The categories are technology-neutral - they apply regardless of how content is created or distributed (including AI-generated content).	Precursor harms (e.g. radicalisation pathways) may not be caught until harm has already occurred - the framework is reactive rather than preventive for these types of harm.
	The category "encourages or promotes hostile attitudes towards women or gender equality" may be difficult to enforce in practice - what constitutes "hostile attitudes" is inherently subjective and may be contested.
	Reliance on Ministerial expansion means new harms must wait for political action, which may be slow, subject to competing political priorities, and potentially impossible if parliament does not agree to the changes.

Areas of Vagueness Requiring Clarification

No clear threshold for "serious" harm.

- The Bill distinguishes between "harm" (s 25E), "seriously harmful material and conduct" (s 25C) and material "harmful to children" (s 25D), but does not define where the threshold lies between harm and serious harm. This lack of a threshold creates uncertainty: when does distressing content cross the line from merely harmful to "seriously harmful"?
- For adults, only "seriously harmful" content triggers the specific protections in s 25B(1)(a). Without a clear threshold, services may under-moderate

(arguing content does not meet the threshold) or over-moderate (removing content cautiously to avoid penalties).

- Organisations may wish to consider recommending that further guidance is provided (either in the explanatory memorandum, the Bill itself, or other guidance materials) on how seriousness is to be assessed, including whether cumulative or contextual factors are relevant.

Risk of unintended consequences

- Several of the harm categories in s 25C are broadly framed and could potentially capture conduct that is politically contested or subject to legitimate public debate. For example: s 25C(1)(j) covers material that “encourages, promotes, incites or provides instruction for the commission of a criminal offence” — this could potentially capture, for example:
 - content supporting or organising environmental protest actions (such as road blockades or trespass on industrial sites) that are technically criminal offences;
 - content discussing or supporting abortion access in jurisdictions where aspects of reproductive healthcare remain criminalised or contested; and
 - content expressing support for or organising protest activity that may be characterised as supporting a listed organisation.
- Similarly, s 25C(1)(k) covers material that “encourages, promotes, urges or instructs illicit drug use” — which could capture harm-reduction content (e.g. information about safe injecting practices) that is intended to reduce harm rather than promote drug use.
- Finally, it is unclear how the duty would apply to art, entertainment or satire depicting some of the harms.
- Organisations may wish to consider how such unintended consequences maybe relevant to their communities or client cohorts, and provide real life case studies in their submission to demonstrate their concerns.

TIP FOR YOUR SUBMISSION Organisations should consider whether the Bill contains sufficient safeguards to prevent these provisions being applied to legitimate civic participation, protest, advocacy, or harm-reduction activities.

Recommendations could include: requiring an intent element (that the material be intended to incite the criminal conduct, not merely discuss it); excluding material with a legitimate public interest purpose; or clarifying in the explanatory memorandum that these provisions are not intended to capture peaceful protest, political advocacy, or public health information.

2.5 Ministerial powers and legislative instruments

The Bill gives the Minister broad powers to make legislative instruments that shape and expand the regulatory framework quickly without needing to amend the primary legislation.

These instruments are disallowable, meaning they are subject to parliamentary scrutiny, and the Minister must seek the eSafety Commissioner's advice before making instruments under key provisions (s 27B) (but does not have to abide by the advice provided).

The Minister's instrument-making powers include the ability to:

- Exempt services from the definition of "online service" (s 25A(3))
- Expand the categories of "seriously harmful material and conduct" (s 25C(2))
- Expand the categories of material "harmful to children" (s 25D(2))
- Determine additional design features with "negative behavioural impacts" (s 25G(2))
- Determine what constitutes a "social media service" (s 25B(2))
- Require user empowerment tools (s 26(4))

Pros	Cons
Provides necessary flexibility to respond to new technologies and emerging harms without the delay of amending primary legislation	The Bill uses a subjective "Minister is satisfied" test rather than objective criteria, giving the Minister wide discretion
Legislative instruments provide a parliamentary check on Ministerial power	There is no mandatory public consultation requirement before instruments are made — affected communities and industry may have no opportunity to provide input
The Commissioner consultation requirement (s 27B) helps ensure that expert, evidence-based input informs Ministerial decisions	Instruments take effect immediately, before the disallowance period expires, meaning a potentially problematic instrument can operate for weeks before Parliament has the opportunity to act.
Consistent with other Australian regulatory frameworks (such as telecommunications and broadcasting) that routinely use delegated legislation to manage technical and operational detail	Disallowance motions are difficult to pass in practice in the Australian Parliament, as they require a vote in either House, reducing the practical effectiveness of this safeguard
	These powers could be used to narrow protections (through exemptions) as well as expand them, depending on the political priorities of the government of the day

Areas of Vagueness Requiring Clarification

No clear process for removing or amending changes made by Minister via legislative instrument

- The Bill provides detailed powers for the Minister to make changes to how the Bill would operate in practice via legislative instrument (e.g. adding harm categories, design features, exemptions, etc.) but is silent on the process for removing or amending those changes once made.
- There is no requirement in the Bill for periodic review of changes made by the Minister via legislative instrument, no sunset clause (ie. automatic date it would expire), and no mechanism for affected parties to petition for the removal of a designation.
- This means that once the Minister adds a category of harm or a design feature to the list, it may remain indefinitely, even if circumstances change, evidence evolves, or the legislative instrument proves to have unintended consequences.
- Importantly, though, legislative instruments can generally be repealed/revoked by another instrument.

Organisations may wish to make recommendations including:

- mandatory periodic review of all changes passed via a legislative instrument (e.g. every 3–5 years)
- requiring the Minister to provide written reasons if they decide not to abide by advice provided by the eSafety Commissioner
- a formal petition mechanism allowing industry, civil society or affected communities to request removal or amendment of a change made via a legislative instrument
- sunset clauses requiring designations to lapse unless actively renewed
- public reporting by the Commissioner on the operation and impact of each legislative instrument.

2.6 Rights protections

Notably, the Bill contains no express protections of human rights. This distinguishes it from comparable overseas legislation such as the EU Digital Services Act (which references fundamental rights) and the UK Online Safety Act (which expressly seeks to protect freedom of expression and privacy).

The Bill does include some features that indirectly address rights concerns:

- The "reasonably practicable" test (s 25H) balances cost and privacy impact, but does not expressly include freedom of expression considerations.
- The private communications exception for adults (s 26(7)) protects lawful private communications from the scope of the duty, implicitly protecting privacy rights and freedom of speech and expression.
- The harm categories in ss 25C and 25D define the scope of material that platforms must address, providing some boundaries on what is caught.

Pros

Cons

The defined harm categories are narrow and mostly cover material that is already illegal or seriously harmful — the Bill does not create broad censorship powers (meaning any risks to freedom of speech or freedom of expression are ameliorated)	The absence of an express rights protection is a significant gap, particularly given the breadth of the duty and the severity of penalties
The systems-based approach (requiring risk assessments and safe design features) is less censorious than content-by-content removal, as it targets platform systems rather than individual speech	High penalties (60,000 penalty units) may incentivise platforms to over-remove content to avoid liability, creating a chilling effect on legitimate speech
Proportionality is built into the "reasonably practicable" standard — measures must be proportionate to cost and other factors	Some harm categories are inherently subjective (e.g. "hostile attitudes towards women or gender equality") and may be applied inconsistently across different platforms and contexts
The private communications exception seems to intend to protect private adult speech from regulatory reach (although see analysis on ambiguity below)	Automated content moderation systems produce false positives that disproportionately affect marginalised communities — including First Nations content, LGBTIQ+ content, and disability advocacy material
	There is no requirement in the Bill itself for platforms to provide reasons for content removal or to offer appeal mechanisms to affected users

Risk of unintended consequences

For civic participation and marginalised communities.

The combination of broadly framed harm categories, high penalties, and no express rights safeguards (including freedom of speech or expression) creates a particular risk for communities whose speech is already subject to disproportionate suppression.

Aboriginal and Torres Strait Islander peoples, culturally and linguistically diverse communities, LGBTIQ+ communities, disability advocates, and political activists may find that automated content moderation systems — deployed by risk-averse platforms seeking to avoid penalties — disproportionately flag or remove their content.

International research consistently shows that automated moderation tools produce higher false-positive rates for content in minority languages, content using reclaimed or in-group terminology, and content discussing sensitive topics such as racism, discrimination, or political protest.

Without an express freedom of expression safeguard and without requirements for human review of automated moderation decisions, the duty may inadvertently silence diverse and marginalised communities.

For private communications between adults

The private communications exception provides that the digital duty of care ‘does not require any action to be taken in relation to lawful communication occurring in private solely between consenting adults’ (s 26(7)).

It is unclear how this would operate in practice, or whether online platforms would be expected to screen messaging services to ascertain or confirm that private communications are ‘lawful’, ‘private’, and ‘solely between consenting adults’.

It is foreseeable that private communications between adults that are not lawful could be prevented from occurring. It is foreseeable that this might include, for example, conversations between adults relating to protest activity if the protest activity is criminalised in the state or territory in which they reside.

Organisations may wish to draw attention to the lack of rights protections in the bill by referring to ‘real world’ case studies, relevant to their clients and communities, that demonstrate the unintended consequences that might flow from a duty with no rights protections and broad categories of harm.

2.7 Enforcement and Redress

The Bill provides the eSafety Commissioner with a graduated enforcement toolkit but does not create a private right of action or an ombudsman or complaints body for individual online safety disputes (noting that the Commissioner still has capacity to receive complaints from users under the existing Online Safety Act infrastructure, which would remain in place even if the bill passes.)

The Commissioner's enforcement powers include:

- Formal warnings (s 26C)
- Remedial directions, with penalties of up to 60,000 penalty units for non-compliance (s 26D)
- Infringement notices
- Civil penalties of up to 60,000 penalty units for breach of the overarching duty (s 26B)

Other features of the enforcement framework:

- There is no private right of action — individuals cannot take direct legal action against platforms for breaching the duty
- There is no ombudsman or independent arbiter for individual disputes about online safety
- Platforms must maintain complaint and dispute resolution processes (s 26F)
- The Commissioner publishes annual monitoring and enforcement priorities (s 166C)

- The Commissioner can publish guidelines on the duty (s 26E)

Pros	Cons
A centralised expert regulator ensures consistent, specialist decision-making — the Commissioner has deep expertise in online safety	Individuals harmed by platform failures cannot take direct action — they are entirely dependent on the Commissioner's discretion to act
The absence of a private right of action avoids vexatious or strategic litigation against online providers	There is no ombudsman for user disputes — if a platform's internal complaint process fails, there is no independent arbiter to turn to
The Commissioner can prioritise systemic issues over individual complaints, addressing root causes rather than symptoms	Commissioner resource constraints are a real concern — a single regulator may not have the capacity to address the volume of online harms experienced across Australia
The graduated enforcement toolkit (warnings, directions, penalties) provides flexibility to match the response to the seriousness of the breach	Platform complaint processes may be inadequate — many community organisations report that existing platform complaints mechanisms are slow, opaque, and ineffective
The annual priorities statement provides transparency about the Commissioner's enforcement approach	There is no requirement for the Commissioner to act on individual complaints, meaning some harms may go unaddressed
	The absence of a private right of action means the entire framework relies on public enforcement, with no safety net if the regulator is under-resourced or slow to act
	Some experts have recommended a multi-Commissioner model to share the regulatory burden, but the Bill retains the single-Commissioner approach

2.8 Transparency and Research

The Bill introduces a new transparency reporting regime and a data access scheme for approved researchers, together with novel protections for investigative research into platform behaviour.

The key elements are:

- **Transparency reporting (Part 12A):** The Commissioner can require platforms to produce transparency reports (s 192C) and can compel publication of safety information (s 192M)
- **Data access for researchers (Part 14):** An approved researcher scheme (s 205B) supported by data access rules (s 205C)
- **"Sock puppet" identity protections:** Researchers and the Commissioner are protected when creating test accounts to investigate platform behaviour (ss 205G–205L)
- Approved researchers must be employees of Australian universities

Pros	Cons
The 'sock puppet' provisions are world-leading — they enable critical investigative research that would otherwise expose researchers to legal risk	Approved researchers are limited to employees of Australian universities — this excludes civil society researchers, independent researchers, journalists, and international academics who do important work on online harms
The data access scheme enables evidence-based policy by giving researchers access to platform data that is otherwise closely held	The data access rules are left to legislative instruments that have not yet been drafted — the practical detail of the scheme is unknown
The transparency reporting regime positions Australia alongside the EU in promoting platform accountability through public disclosure	There are genuine privacy and security tensions in providing researchers with access to platform data, and the Bill does not yet detail the safeguards
Transparency reports help the public, civil society, and policymakers understand platform safety performance and hold platforms to account	There is no requirement for platforms to provide data in interoperable or standardised formats, which may limit the usefulness of data access in practice
	Transparency reports may not be sufficiently detailed or comparable across platforms without minimum content standards

2.9 New Take-Down and Link Deletion Powers

The Bill introduces several new powers aimed at the distribution layer of harmful content — targeting app stores, search engines, and the problem of reposted material.

Part 6A — Fake nude material apps: The Commissioner can require app stores and search engines to remove apps or websites that are designed for, or predominantly used to generate, fake nude material (s 86B). Platforms have a 24-

hour compliance window, with penalties of 6,000 penalty units for non-compliance.

Sections 72A and 92A— Link deletion for cyber-bullying material targeting children and adults: The Commissioner can issue link deletion notices to search engines for cyber-bullying material targeting Australian children and adults. A removal notice must have already been issued as a prerequisite. Platforms have 24 hours to comply, with 6,000 penalty units for non-compliance.

Complaint waiver: The Commissioner can waive the requirement for a complaint to the provider where there is no functional complaints mechanism or where there is a risk of further harm to the victim.

Reposting provisions: The Commissioner can act on reposted material (even if altered) without requiring a fresh complaint, addressing the common problem of harmful material resurfacing in modified form.

Pros	Cons
Addresses the distribution layer — links in search results can continue to surface harmful material even after the source content has been removed	Part 6A is limited to apps and websites whose "predominant purpose or use" is to generate fake nude material — many AI tools that can generate such material have broader purposes and would not be caught by this provision
The 24-hour compliance window ensures faster response times for victims	Link deletion is limited to search engines only — it does not cover social media sharing, messaging apps, or other distribution channels where harmful material circulates
The complaint waiver removes barriers for victims who cannot safely complain to the platform directly — for example, where doing so might alert a perpetrator	The sequential prerequisite for link deletion (a removal notice must be issued first) creates delay at a time when speed matters most
The reposting provisions address the persistent "whack-a-mole" problem, where harmful material is re-uploaded in slightly altered form	There is no individual complaint mechanism for Part 6A — only the Commissioner can initiate action
Part 6A directly targets the growing problem of non-consensual intimate image generation using AI tools	

PART 3: CASE STUDIES – HOW THE DIGITAL DUTY OF CARE WOULD APPLY

The following worked examples illustrate how the Bill, if it became law, would apply to real-world scenarios. Each compares the current legal position with the proposed framework and identifies remaining gaps.

TIP FOR YOUR SUBMISSION Organisations may opt to use a similar ‘case study’ structure to present their own case studies in submissions and demonstrates gaps or strengths of the Bill.

Case study 1: Algorithmic Targeting Based on Addiction

Hypothetical facts

A community legal centre assists clients experiencing alcohol addiction whose social media feeds are dominated by algorithmically targeted alcohol advertising. Platform algorithms appear to use data inferred from clients’ online activity (e.g. searching for addiction recovery information) to target them with discounted alcohol content, undermining treatment and triggering relapse.

Summary

This scenario is not within the remit of the current Online Safety Act. The Bill, if it became law, would require online services to ensure that children aren’t targeted with an algorithm featuring alcohol advertising (although a one-off alcohol advertisement might not be covered), but the digital duty of care probably wouldn’t apply to this scenario for adults (although this is unclear.) More detail in the table below.

Topic	Online Safety Act (current)	The Bill (if it became law)
Content – alcohol advertising	 Content involving alcohol content not within the remit of the Act.	 <u>For adults</u> Content involving alcohol would not be captured under the digital duty of care, does not fall within a category of ‘seriously harmful material and conduct’ (s 25C)  <u>For children</u> Online services might be required to ensure children do not see alcohol related content online, although this is not clear cut. Although online services have a duty to (as far as is reasonably practicable) provide a safe

		online environment, which requires them to protect children from 'content that is harmful to children' (s 25B), it is not clear if alcohol advertising in and of itself is 'harmful to children' (s 25D(f)(i).
Design features – recommender feature advertising alcohol	 Recommender system (ie. targeted alcohol advertising) not within the remit of the Act.	 <u>For adults</u> It is unclear if online platforms would be required to do anything about this under their digital duty of care. The recommender system is a defined “design feature” (s 25F) and, as part of the duty of care, online services must ‘manage design features appropriately’ (<i>the meaning of this is unclear</i>) It could be argued that it is appropriate to managing such a design feature (ie. make sure it isn’t used to target people experiencing addiction), but this is unclear.  <u>For children</u> Online services may be required to ensure (so far as is reasonably practicable) that children are protected from alcohol advertising via recommender systems under the digital duty of care. This is because as part of their duty of care, online services must protect children from harms associated with design features, including recommender systems (s 25B(1)(b)(ii)). It is more likely that targeted alcohol advertising for children would be considered harmful to them.

Possible recommendations (ordered from most to least politically feasible)

- Expand harm categories to include content that exploits known vulnerabilities.
- Require recommender algorithms to be opt-in by default (aligns with the Government’s announced policy direction on opt-out algorithms and has strong public support, but will likely face significant industry resistance).

- Include a specific prohibition on algorithmic targeting based on inferred health or addiction data (would require a provision and intersects with privacy reform - adds complexity to the Bill).
- Align with the EU Digital Services Act approach to advertising restrictions, including prohibiting targeted advertising based on special categories of personal data.

Case study 2: The Age Cliff – How the Bill would apply to teens

Hypothetical facts

Anja, who is 15-years-old, experiences sustained online harassment on a social media platform - including body-shaming, sexualised comments, and coordinated pile-on behaviour from anonymous accounts. The bullying she is experiencing is having significant mental health impacts.

She then turns 16, and the bullying and harassment continues.

Things get better for a couple of years but when she is in her final year of high school, and 18 years old, the co-ordinated online bullying starts again. Anja once again experiences significant mental health impacts and starts thinking about suicide.

Summary

Under the Bill:

- At 15 years old, Anja benefits from the full suite of child protections under the Bill.
- At 16 years old, Anja gains access back to harmful features on her social media apps, but still receives some protection under the Bill.
- At 18 years old, the legal protections under the Bill change dramatically. Anja is not protected from the online abuse under the Bill.

	Content	Design features
15 years old	Online services required to protect children from 'material and conduct that is harmful to children' including 'abuse, harassment or bullying' (s 25D(e)) ✔ Anja is protected under the Bill	Anja wouldn't have access to 'design features' on social media (such as algorithms that might be amplifying the abuse) because these are banned for under-16s (s 25B(1)(c)). ✔ Anja is protected under the Bill
16 years old	As above ✔ Anja is protected under the Bill	Because Anja has turned 16, she is now allowed 'design features' on social media, including algorithms. But she is still protected somewhat because online services must protect

18 years old		children from ‘harms associated with the operation of design features’  Anja is somewhat protected under the Bill
	Anja is now an adult. Online services don’t have to protect adults from abuse, harassment or bullying because these are not considered to be ‘seriously harmful content’ (see s 25B(1)(a) and 25C. Would only be protected if the bullying meets the higher threshold of intending to cause serious harm by menacing or harassing (s 25C(1)(f))  Anja is not protected under the Bill	Because Anja is now an adult, there are no specific protections relating to design features online including on social media.  Anja is not protected under the Bill

Possible Recommendations (ordered from most to least politically feasible)

- Clarify in the explanatory memorandum that cumulative harassment - even if individual instances fall below the “seriously harmful” threshold - can constitute seriously harmful material or conduct when assessed as a pattern.
- Require risk assessments under s 26A to specifically identify risks to young adults aged 18 -25 as a distinct cohort, recognising their developmental proximity to children (minor addition to risk assessment requirements)
- Extend the design feature restrictions (or a graduated version of them) to young adults aged 18–25 on social media, creating a transitional period rather than a hard cliff (requires a new provision and a policy decision about the appropriate age boundary — will face arguments about arbitrariness and adult autonomy)

PART 4: TEMPLATE SUBMISSION

Below is a template submission that your organisation can adapt. Text in [square brackets] should be replaced with your organisation's details. You may delete sections that are not relevant to your submission.

 **Formatting Tip** Government prefers submissions that are clearly structured, use headings, and include a summary of key points at the beginning (especially as the Secretariat may be using AI to assist with synthesising key themes from submissions). Keep your submission concise - quality over quantity.

[Date]

Digital Duty of Care Consultation
Department of Infrastructure, Transport, Regional Development,
Communications, Sport and the Arts

Via email: digitaldoc@infrastructure.gov.au

Dear Secretariat,

Re: Submission on the Exposure Draft - Online Safety Amendment (Digital Duty of Care) Bill 2026

[Organisation name] welcomes the opportunity to make this submission in response to the exposure draft of the *Online Safety Amendment (Digital Duty of Care) Bill 2026*.

About [Organisation Name]

[Organisation name] is a [type of organisation — e.g. community legal centre / not-for-profit / peak body / advocacy organisation] based in [location]. We [brief description of what the organisation does — e.g. provide free legal assistance to / advocate on behalf of / support] [description of communities served]. [Optional: We have been operating since [year] and assist approximately [number] people per year.]

[Organisation name] has direct experience working with [communities/individuals] who are affected by online harms including [brief description of relevant harms — e.g. technology-facilitated abuse, cyberbullying, algorithmic targeting, image-based abuse, online scams].

This submission draws on our frontline experience to [support / raise concerns about / suggest improvements to] the proposed Digital Duty of Care framework.

Contact Person

[Name]

[Title]

[Phone]

[Email]

Executive summary and recommendations

[Insert a numbered list of your specific recommendations to Government, starting with a clear statement of whether your organisation supports the bill]

1. *[E.g. Organisation name supports the introduction of an overarching duty as set out in section 26 of the exposure draft]*
2. ...
3. ...
4. ...

Detailed Submissions

Flesh out your organisation's views selecting the issues where your organisation has relevant expertise and case studies to contribute. This resource details some of the issues your organisations could cover in detailed submissions, including:

- *The Overarching Duty*
- *Protections for Adults vs Children*
- *Design Features*
- *Scope of Harms*
- *Ministerial Powers and Delegated Legislation*
- *Freedom of Expression*
- *Enforcement and Redress*
- *Transparency and Research*
- *New Take-Down and Link Deletion Powers*

Use the structure from Part 3 to insert relevant case studies.

Set out any ideas your organisation has for future amendments to improve the bill or actions government can take to build on the duty and its enforcement, for example :

- *a future statutory review of design features to add compulsion and addictive design, or*
- *a user empowerment tool that gives users the power to turn off behavioural advertising*

Conclusion

[Organisation name] [supports / broadly supports / has concerns about] the introduction of a Digital Duty of Care. [Brief concluding statement about the importance of the reform and what it means for the communities you serve.]

We would welcome the opportunity to discuss this submission further.

Yours faithfully,

[Name]

[Title]

[Organisation name]

APPENDIX: QUICK REFERENCE - KEY PROVISIONS

The following table summarises the key provisions discussed in this resource.

Provision	What It Does	Section Reference
Overarching duty	Requires persons responsible for online services to ensure, so far as is reasonably practicable, a safe online environment	s 26(1)
Online service	Broad definition: social media, search engines, app stores, hosting, devices, AI content generation	s 25A
Safe online environment	Tiered protection: all persons (seriously harmful), children (harmful to children + design features), under-16s (design feature prohibition)	s 25B
Seriously harmful material and conduct	Defined categories of material/conduct harmful to all persons in Australia	s 25C
Harmful to children	Broader categories of material harmful to children	s 25D
Design features	Recommender, endless-feed, feedback, logged-in, time-limited	s 25F
Negative behavioural impacts	Design features that negatively affect children on social media	s 25G
Reasonably practicable	Balances harm likelihood/degree, knowledge, mitigation availability, cost, and privacy	s 25H
Risk assessments	Mandatory identification and assessment of foreseeable risks; annual review	s 26A
Breach of duty	Civil penalty: up to 60,000 penalty units	s 26B
Formal warnings	Commissioner may issue formal warning for breach	s 26C
Remedial directions	Commissioner may direct specific actions; 60,000 penalty units for non-compliance	s 26D
Commissioner guidelines	Commissioner may publish guidelines on the duty	s 26E
Complaint processes	Platforms must maintain complaint and dispute resolution processes	s 26F

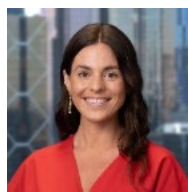
Private comms exception	Duty does not apply to lawful private communications between consenting adults	s 26(7)
Ministerial instruments	Minister must seek Commissioner's advice before making key instruments	s 27B
Fake nude material	Commissioner can require removal of apps/sites for generating fake nude images; 24-hour compliance	Part 6A, s 86B
Link deletion (children)	Link deletion notices for cyber-bullying material targeting children (search engines)	s 72A
Link deletion (adults)	Link deletion notices for cyber-abuse material targeting adults (search engines)	s 92A
Transparency reports	Commissioner can require transparency reports and compel publication of safety information	Part 12A
Data access	Approved researcher scheme with data access rules	Part 14, s 205B
Sock puppet protections	Identity protections for researchers and Commissioner using test accounts	ss 205G-205L
User empowerment tools	Minister may require services to provide user control tools	s 26(4)-(6)
Enforcement priorities	Commissioner must publish annual statement of monitoring and enforcement priorities	s 166C
Repeal of codes/standards	Repeals existing industry codes and standards (Schedule 3)	Schedule 3

Authors



Leanne Ho

Partner
Leanne.Ho@wottonkearney.com



Claire Thurstans

Special Counsel
Claire.Thurstans@wottonkearney.com

Wotton Kearney developed this resource in partnership with Digital Rights Watch.

14 September 2026